

Court No. - 39

Case :- WRIT - C No. - 40978 of 2014

Petitioner :- Ayub

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Devendra Kumar Tiwari

Counsel for Respondent :- C.S.C., Shivam Yadav

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

Heard Shri Devendra Kumar Tiwari, learned counsel for the petitioner, learned Standing Counsel for the respondent nos. 1 and 2 and Shri Shivam Yadav, who has accepted notice on behalf of the respondent no. 3.

Petitioner has approached this Court challenging the citation dated 13.06.2013 issued by respondent no. 3 for recovery of a sum of Rs.76,624/- from him towards consumption of electrical energy.

Learned counsel for the petitioner contends that petitioner is ready and willing to deposit the entire amount in instalments.

Shri Shivam Yadav, learned counsel appearing for the respondent-Corporation points out that under Clause 6.14 of the U.P. Electricity Supply Code, 2005, Executive Engineer, D.G.M. and General Manager are empowered with the authorities to extend the facility of instalments to the consumers, who are in financial distress. The petitioner may approach the relevant authorities along with representation in this regard.

Accordingly, the writ petition stands disposed of with liberty to the petitioner to make representation before the authority concerned in accordance with the provision of Clause 6.14 of the U.P. Electricity Supply Code, 2005 within a period of four weeks from today and in case, any such representation is made, the authority concerned shall proceed to decide the same in accordance with law, expeditiously preferably within a further period of one month from the date of making of the representation.

Order Date :- 7.8.2014

VKS